

1 ENGROSSED HOUSE
2 BILL NO. 4335

By: Moore of the House

3 and

4 Hamilton of the Senate
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7 An Act relating to animals; providing that a county,
8 municipality, or an agency shall have certain limited
9 authority over retail pet shops; exempting ordinances
10 enacted before a certain date; amending 4 O.S. 2021,
11 Section 30.8, which relates to animal shelter
12 operators and commercial pet breeders; changing
13 timeline for certain required notices; and providing
14 an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 30.17 of Title 4, unless there
18 is created a duplication in numbering, reads as follows:

19 A. A county or municipality, or any agency thereof may:

20 1. Adopt or enforce rules, administrative regulations, codes,
21 or ordinances relating to the operation of a retail pet shop;
22 provided the pet shop is in compliance with the Commercial Pet
23 Breeders and Animal Shelter Licensing Act and other applicable
24 rules, regulation, codes, or ordinances; and

1 2. Regulate and inspect retail pet stores but may not ban or
2 otherwise effectively prohibit a retail pet shop or retail pet shop
3 owner for selling dogs and cats within the county or municipality
4 unless the shop or owner has received three or more convictions over
5 five (5) years for violating the Commercial Pet Breeders and Animal
6 Shelter Licensing Act.

7 B. This section does not apply to any county or municipal
8 ordinance enacted prior to January 1, 2026.

9 SECTION 2. AMENDATORY 4 O.S. 2021, Section 30.8, is
10 amended to read as follows:

11 Section 30.8. A. An animal shelter operator or commercial pet
12 breeder who is not in violation of the Commercial Pet Breeders and
13 Animal Shelter Licensing Act or any rule adopted under the
14 Commercial Pet Breeders and Animal Shelter Licensing Act may renew
15 the license of the person by:

16 1. Submitting a renewal application to the Oklahoma Department
17 of Agriculture, Food, and Forestry on the form prescribed by the
18 Department;

19 2. Complying with any other renewal requirements adopted by the
20 Department; and

21 3. Paying the required fee.

22 B. Any person who fails to apply for a renewal in a manner
23 prescribed by the Department, and whose license has expired, may not
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engage in activities that require a license until the license has been renewed.

C. Not later than ~~sixty (60)~~ ninety (90) days before the expiration of the license, the Department shall send written notice of the impending license expiration to the animal shelter operator or commercial pet breeder at the last-known address according to the records of the Department.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 4th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate